

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3289

By: Roe

AS INTRODUCED

An Act relating to continuum of care and assisted living; creating the Providers' Bill of Rights Act of 2026; establishing what the providers' bill of rights contains; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Providers' Bill of Rights Act of 2026".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-896 of Title 63, unless there is created a duplication in numbering, reads as follows:

A. Each assisted living facility shall post a providers' bill of rights in a prominent place in the facility.

B. The providers' bill of rights shall provide, as defined under the Continuum of Care Act, has the right to:

1 1. Be shown consideration and respect that recognizes the
2 dignity and individuality of the provider and assisted living
3 facility;

4 2. Terminate a resident's contract for just cause pursuant to
5 OAC 310:663-3-5 after a written 30-day notice;

6 3. Terminate a contract immediately, if the provider finds that
7 it is mandated by the resident's immediate health needs or necessary
8 for the physical safety of the resident or other residents;

9 4. Present grievances, file complaints, or provide information
10 to state agencies or other persons without threat of reprisal or
11 retaliation;

12 5. Refuse to perform services for the resident or the
13 resident's family other than those contracted for by the resident
14 and the provider;

15 6. Contract with the community to achieve the highest level of
16 independence, autonomy, interaction, and services to residents;

17 7. Access to obtain and request any relevant information or
18 records of a consumer referred to the facility in order to assess
19 for appropriate placement, which shall remain confidential as
20 provided by law;

21 8. Refuse a consumer referred to the facility if the referral
22 is inappropriate;

23 9. Refuse to provide any information to third-party providers;

24 10. Maintain an environment free of weapons and drugs;

1 11. Be made aware of a resident's history, including self-
2 abuse, violent behavior, alcoholism, or drug abuse; and

3 12. Be made aware if a resident has contracted, arranged, or is
4 being provided with a sitter or any other provider of personal
5 services in his or her personal apartment.

6 SECTION 3. This act shall become effective November 1, 2026.

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